



INDIAN POLITY



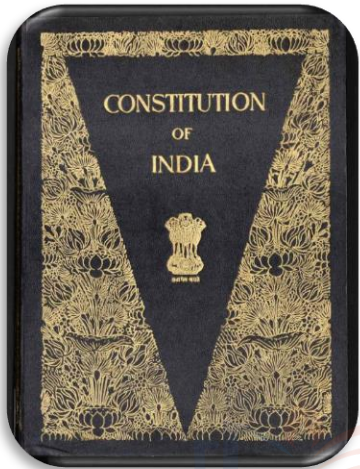
INTER-STATE RELATIONS



FRE
CA
S



MODULE – 116



1 The successful functioning of the Indian federal system depends not only on the harmonious relations and close cooperation between the Centre and the states but also between the states inter se.

2 Hence, the Constitution makes the following provisions with regard to inter-state comity:

- a) Adjudication of **inter-state water disputes**.
- b) Coordination through **inter-state councils**.
- c) **Mutual recognition of public acts, records and judicial proceedings**.
- d) Freedom of **inter-state trade, commerce and intercourse**.

3 In addition, the **zonal councils** have been established by the Parliament to promote inter-state cooperation and coordination.

INTER-STATE RELATIONS

INTER-STATE WATER DISPUTES



— PARLIAMENT OF INDIA —

Under this provision, the Parliament has enacted two laws- the River Boards Act (1956) and the Inter-State Water Disputes Act (1956).

Article 262 of the Constitution provides for the adjudication of inter-state water disputes. It makes two provisions:

- i. Parliament may **by law** provide for the adjudication of any dispute or complaint with respect to the use, distribution and control of waters of any inter-state river and river valley.
- ii. Parliament may also provide that **neither the Supreme Court nor any other court is to exercise jurisdiction** in respect of any such dispute or complaint.

INTER-STATE RELATIONS

INTER-STATE WATER DISPUTES

WHAT ABOUT THE RIVER BOARDS ACT?

- The River Boards Act provides for the **establishment of river boards for the regulation and development** of inter-state river and river valleys.
- A river board is established by the Central government on the request of the state governments concerned to advise them.



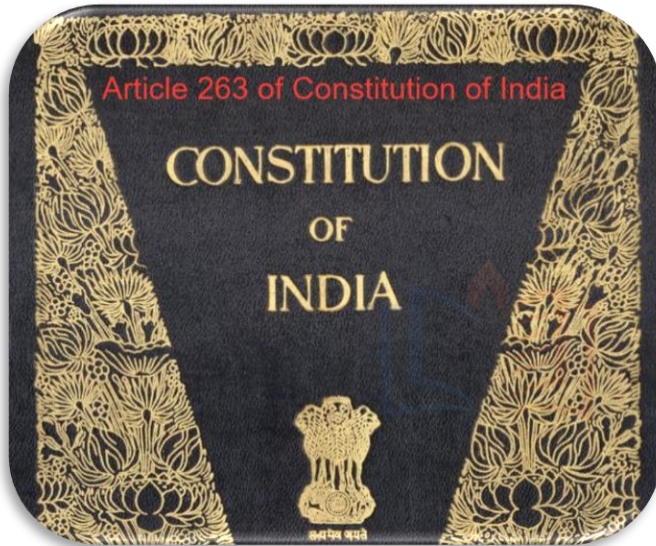
WHAT ABOUT INTER-STATE WATER DISPUTES ACT?

- The Inter-State Water Disputes Act empowers the Central government to **set up an ad hoc tribunal for the adjudication of a dispute** between two or more states in relation to the waters of an inter-state river or river valley.
- The decision of the tribunal would be **final and binding** on the parties to the dispute.



INTER-STATE RELATIONS

INTER-STATE COUNCILS



- Article 263 contemplates the establishment of an Inter-State Council to effect coordination between the states and between Centre and states.
- Thus, the President can establish such a council if at any time it appears to him that the public interest would be served by its establishment.
- He can define the nature of duties to be performed by such a council and its organisation and procedure.

INTER-STATE RELATIONS

INTER-STATE COUNCILS

Even though the president is empowered to define the duties of an inter-state council, Article 263 specifies the duties that can be assigned to it in the following manner:



- 1** Enquiring into and advising upon **disputes** which may arise between states;
- 2** Investigating and discussing subjects in which the states or the Centre and the states have a **common interest**
- 3** Making **recommendations** upon any such subject, and particularly for the better co-ordination of policy and action on it.

INTER-STATE RELATIONS

INTER-STATE COUNCILS

COMPLEMENTARY NATURE OF INTER-STATE COUNCILS WITH SUPREME COURT



- 1 The council's function to enquire and advice upon inter-state disputes is **complementary to the Supreme Court's jurisdiction under Article 131** to decide a legal controversy between the governments.
- 2 The Council can deal with any controversy whether legal or non-legal, but its function is **advisory** unlike that of the court which gives a binding decision.

INTER-STATE RELATIONS

INTER-STATE COUNCILS

ESTABLISHMENT OF INTER-STATE COUNCIL



- 1 The Sarkaria Commission on Centre-State Relations (1983–87) made a strong case for the establishment of a permanent Inter-State Council under Article 263 of the Constitution.
- 2 It recommended that in order to differentiate the Inter-State Council from other bodies established under the same Article 263, it must be called as the Inter-Governmental Council.

INTER-STATE RELATIONS

INTER-STATE COUNCILS

ESTABLISHMENT OF INTER-STATE COUNCIL

COMPOSITION OF INTER-STATE COUNCILS

1

In pursuance of the above recommendations of the Sarkaria Commission, the Janata Dal Government headed by V. P. Singh established the Inter- State Council in 1990.

Five Ministers of Cabinet rank / Minister of State (independent charge) nominated by the Chairman of the Council (i.e., Prime Minister) are permanent invitees to the Council.

2

It consists of the following members:

- i. Prime minister as the Chairman
- ii. Chief ministers of all the states
- iii. Chief ministers of union territories having legislative assemblies
- iv. Administrators of union territories not having legislative assemblies
- v. Governors of States under President's rule
- vi. Six Central cabinet ministers, including the home minister, to be nominated by the Prime Minister.

INTER-STATE RELATIONS

INTER-STATE COUNCILS

ESTABLISHMENT OF INTER-STATE COUNCIL

DUTIES OF INTER-STATE COUNCILS



- 1 The council is a **recommendatory** body on issues relating to inter-state, Centre-state and Centre-union territories relations.

- 2 It aims at promoting coordination between them by examining, discussing and deliberating on such issues.

- 3 Its duties, in detail, are as follows:
 - **Investigating and discussing** such subjects in which the states or the centre have a **common interest**;
 - **Making recommendations** upon any such subject for the better coordination of policy and action on it; and
 - **Deliberating upon such other matters of general interest to the states** as may be referred to it by the chairman.

INTER-STATE RELATIONS

INTER-STATE COUNCILS

ESTABLISHMENT OF INTER-STATE COUNCIL

FUNCTIONING OF THE INTER-STATE COUNCILS

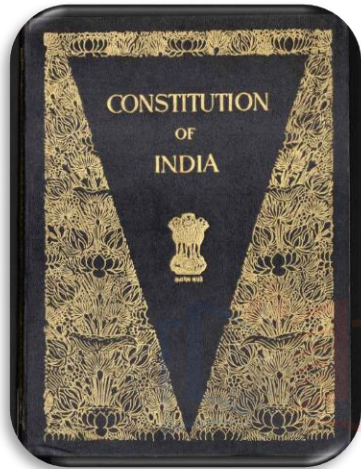


1 The Council may meet at least thrice in a year. Its meetings are held in camera and all questions are decided by consensus.

2 The Council is assisted by a secretariat called the **Inter-State Council Secretariat**. This secretariat was set-up in 1991 and is headed by a secretary to the Government of India. Since 2011, it is also functioning as the secretariat of the Zonal Councils.

INTER-STATE RELATIONS

PUBLIC ACTS, RECORDS AND JUDICIAL PROCEEDINGS



1 Under the Constitution, the jurisdiction of each state is confined to its own territory.

2 Hence, it is possible that the acts and records of one state may not be recognised in another state.

PUBLIC ACTS, RECORDS AND JUDICIAL PROCEEDINGS

3 To remove any such difficulty, the Constitution contains the “**Full Faith and Credit**” clause which lays down the following:

- i. **Full faith and credit is to be given throughout the territory of India to public acts, records and judicial proceedings of the Centre and every state.** The expression ‘public acts’ includes both legislative and executive acts of the government. The expression ‘public record’ includes any official book, register or record made by a public servant in the discharge of his official duties.
- ii. The manner in which and the conditions under which such acts, records and proceedings are to be proved and their effect determined would be as provided by the **laws of Parliament**. This means that the general rule mentioned above is subject to the power of Parliament to lay down the mode of proof as well as the effect of such acts, records and proceedings of one state in another state.
- iii. **Final judgements and orders of civil courts** in any part of India are capable of execution anywhere within India (without the necessity of a fresh suit upon the judgement). The rule applies only to civil judgements and **not to criminal judgements**. In other words, it does not require the courts of a state to enforce the penal laws of another state.

INTER-STATE RELATIONS

INTER-STATE TRADE AND COMMERCE

Articles 301 to 307 in Part XIII of the Constitution deal with the trade, commerce and intercourse within the territory of India.

- 1** Article 301 declares that trade, commerce and intercourse throughout the territory of India shall be free.
- 2** The object of this provision is to break down the border barriers between the states and to create one unit with a view to encourage the free flow of trade, commerce and intercourse in the country.
- 3** The freedom under this provision is not confined to inter-state trade, commerce and intercourse but also extends to intra-state trade, commerce and intercourse.
- 4** Thus, Article 301 will be violated whether restrictions are imposed at the frontier of any state or at any prior or subsequent stage.

INTER-STATE RELATIONS

INTER-STATE TRADE AND COMMERCE

RESTRICTIONS IMPOSED ON ARTICLE 301

The freedom guaranteed by Article 301 is a freedom from all restrictions, except those which are provided for in the other provisions (Articles 302 to 305) of Part XIII of the Constitution itself.



— PARLIAMENT OF INDIA —

1

- Parliament can impose **restrictions** on the freedom of trade, commerce and intercourse **between the states** or **within a state** in public interest.
- But, the Parliament cannot give preference to one state over another or **discriminate between the states** except in the case of scarcity of goods in any part of India.

INTER-STATE RELATIONS

INTER-STATE TRADE AND COMMERCE

RESTRICTIONS IMPOSED ON ARTICLE 301

2

- The legislature of a state can impose **reasonable restrictions** on the freedom of trade, commerce and intercourse **with that state or within that state in public interest.**
- But, a bill for this purpose can be introduced in the legislature only with the previous sanction of the president.
- Further, the state legislature cannot give preference to one state over another or discriminate between the states.

3

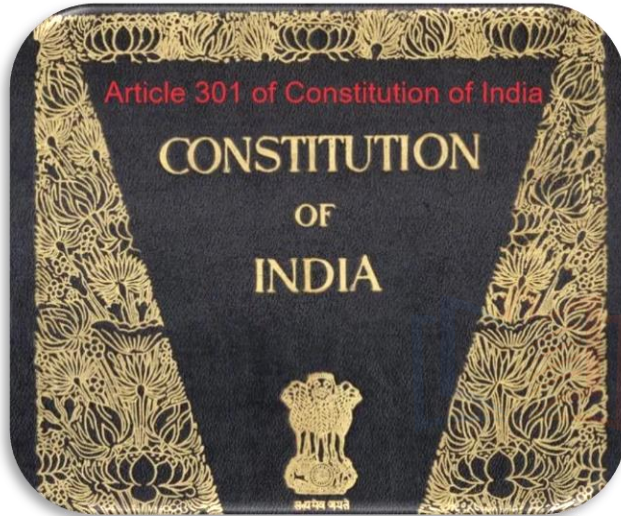
- The legislature of a state can impose on goods **imported from other states or the union territories** any tax to which similar goods manufactured in that state are subject.
- This provision prohibits the imposition of discriminatory taxes by the state.



INTER-STATE RELATIONS

INTER-STATE TRADE AND COMMERCE

RESTRICTIONS IMPOSED ON ARTICLE 301

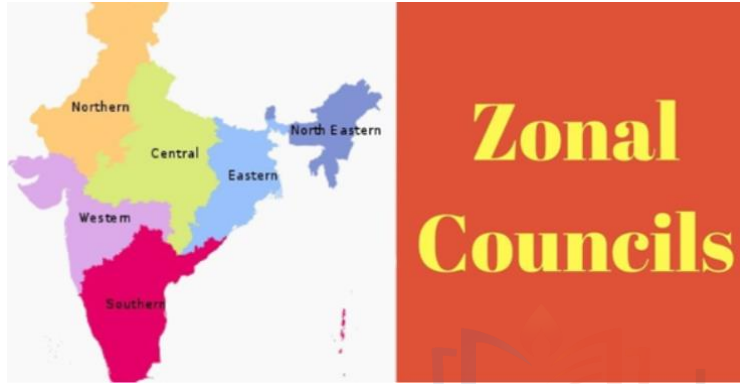


4

- The freedom (under Article 301) is **subject to the nationalisation laws** (i.e., laws providing for monopolies in favour of the Centre or the states).
- Thus, the Parliament or the state legislature can make laws for the carrying on by the respective government of any trade, business, industry or service, whether to the exclusion, complete or partial, of citizens or otherwise.

INTER-STATE RELATIONS

ZONAL COUNCILS



- 1 The Zonal Councils are the **statutory** (and not the constitutional) bodies. They are established by an Act of the Parliament, that is, **States Reorganisation Act of 1956**.

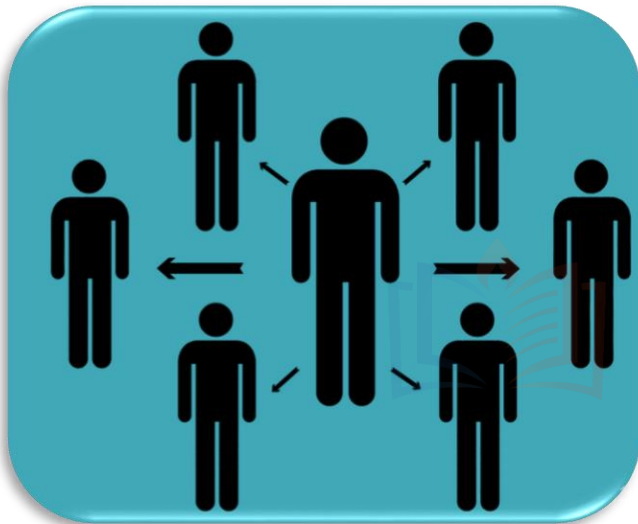
- 2 The act divided the country into **five zones** (Northern, Central, Eastern, Western and Southern) and provided a zonal council for each zone.

- 3 While forming these zones, several factors have been taken into account which include:
 - ✓ the **natural divisions** of the country, the **river systems** and means of **communication**
 - ✓ the **cultural and linguistic affinity** and
 - ✓ the **requirements** of economic development, security and law and order.

INTER-STATE RELATIONS

ZONAL COUNCILS

COMPOSITION OF ZONAL COUNCILS



1

Each zonal council consists of the following **members**:

- Home Minister of Central government.
- Chief Ministers of all the States in the zone.
- Two other ministers from each state in the zone.
- Administrator of each union territory in the zone.

INTER-STATE RELATIONS

ZONAL COUNCILS

COMPOSITION OF ZONAL COUNCILS

2 Besides, the following persons can be associated with the zonal council as **advisors** (i.e., without the right to vote in the meetings):

- i. A person nominated by the Planning Commission;
- ii. Chief secretary of the government of each state in the zone; and
- iii. Development commissioner of each state in the zone.

3 The **home minister** of Central government is the common chairman of the five zonal councils. Each chief minister acts as a vice-chairman of the council by rotation, holding office for a period of one year at a time.





INTER-STATE RELATIONS

ZONAL COUNCILS

OBJECTIVES OF ZONAL COUNCILS



The zonal councils aim at promoting cooperation and coordination between states, union territories and the Centre. They are only deliberative and advisory bodies.

- To achieve an **emotional integration** of the country.
- To help in arresting the growth of **acute state-consciousness, regionalism, linguism** and particularistic trends.
- To help in removing the **after-effects of separation** in some cases so that the process of reorganisation, integration and economic advancement may synchronise.

- To enable the Centre and states to cooperate with each other in **social and economic matters** and exchange ideas and experience in order to evolve uniform policies.
- To cooperate with each other in the **successful and speedy execution** of major development projects.
- To secure some kind of political **equilibrium** between different regions of the country.

INTER-STATE RELATIONS

ZONAL COUNCILS

NORTH-EASTERN COUNCIL

- 1 In addition to the above Zonal Councils, a North-Eastern Council was created by a separate Act of Parliament—the **North-Eastern Council Act of 1971**.
- 2 Its members include Assam, Manipur, Mizoram, Arunchal Pradesh, Nagaland, Meghalaya, Tripura and Sikkim.
- 3 Its functions are similar to those of the zonal councils, but with few additions.
- 4 It has to formulate a unified and coordinated regional plan covering matters of common importance.
- 5 It has to review from time to time the measures taken by the member states for the **maintenance of security and public order in the region**.



सत्यमेव जयते

North Eastern Council
Government of India

WE EXPRESS OUR
SINCERE THANKS
FOR VIEWING THIS VIDEO

Presented by



Learning Space

For Suggestions:

suggestions@learningspace.in

To Contact us:

info@learningspace.in

For Information:

info.learningspacedigital@gmail.com

Visit us at:

www.learningspacedigital.com

0866 244 44 72

98499 42299

94415 27588